

Calendar Line # 6
Case Name Jane Doe 1 vs Rafael Ramirez et al
Case No. 25CV473786
Motion for Change of Venue I. <u>BACKGROUND</u> This case stems from allegations of sexual assault. Plaintiff Jane Doe filed a Complaint on August 27, 2025 against Defendants Pacific Collegiate School (“PCS”), Santa Cruz County Office of Education (“SCCOE”), Rafael Ramirez, Maria Reitano, Trung Lai, and DOES 1 through 10 (collectively “Defendants”). Plaintiff filed a First Amended Complaint on January 15, 2026 alleging five causes of actions, including: (1) sexual abuse of a minor; (2) negligence of SCCOE, PCS employee in hiring, supervision and/or retention of Defendant Lai under Government Code section 815.2; (3) negligence of SCCOE, PCS employee in, supervision of Jane Doe 1 under Government Code section 815.2; (4) negligence of SCCOE, PCS employee in hiring, supervision and/or retention of Defendant Lai; and (5) negligence of SCCOE, PCS employee in, supervision of Jane Doe 1. On March 24, 2026, the Court heard Defendant Lai’s motion to stay civil proceedings for a period of six months pending Defendant Lai’s criminal case in Santa Cruz County, docket 24CR02808. Before the Court, is Plaintiff’s motion to change venue. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Defendants stipulate to Plaintiff’s motion to transfer venue to Santa Cruz County. II. <u>LEGAL STANDARD</u> Code of Civil Procedure section 395, subdivision (a) provides, in pertinent part: Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action. (Code of Civ. Proc., 395(a)). The burden is on the moving party to establish that the venue selected by Plaintiff is improper. And the moving party has the burden of “negating the propriety of venue as laid on all possible grounds.” (<i>Karson Industries, Inc. v. Superior Court</i> (1969) 273 Cal.App.2d 7, 8-9). III. <u>ANALYSIS</u> Here, the Plaintiff’s motion to change venue is unopposed and made pursuant to a stipulation by all parties. (Exhibit A, attached to Motion, p. 1). Plaintiff moves to transfer venue from Santa Clara County to Santa Cruz County. It is unopposed that parties reside or conduct business in Santa Cruz County. (Motion, p. 2). Plaintiff claims that the sexual assault occurred in Santa Cruz County. (<i>Id.</i>, at p. 3). The Court notes that parties represented that a criminal case was filed and pending in Santa Cruz County, docket number 24CR02808. It is undisputed that this civil case

and criminal matter in Santa Cruz County arise from the same operative factual allegations. Parties stipulate that a transfer to Santa Cruz County will have no adverse inference or legal consequences. (Exhibit A, at p. 4).

The Court finds that Santa Cruz County is the proper venue for this action. The parties stipulate that all parties either reside or conduct business in Santa Cruz County. Moreover, the underlying factual allegations occurred in Santa Cruz County. Criminal charges arising from the same operative facts were filed in Santa Cruz in docket 24CR02808.

IV. CONCLUSION

Based on the foregoing, the stipulated motion to change venue in this action to Santa Cruz County is GRANTED. The Court will prepare the formal order.

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